

TENTATIVE RULINGS

FOR: August 13, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Corinne T. Rau

18PR000156

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

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Estate of Donald Gene Ware Stoddard

26-25034

PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no Duties and Liabilities form (DE-147) in the Court's file. (See Prob. Code § 8404.) If one is filed prior to the hearing, the Court will grant the Petition, appoint Richard S. Thomas as probate referee, and set the matter for a Status Hearing Re: Final Distribution on August 12, 2027 at 8:30 a.m. in Dept. A.

If no DE-147 is filed prior to the hearing, the matter will be CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A. to allow Petitioner time to file the required form.

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Conservatorship of Dennis Cole Makemson

26PR000146

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

TENTATIVE RULING: The matter is CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A to allow Petitioner time to file a Confidential Capacity Assessment and Declaration form (Judicial Counsel form GC-335). The Order Appointing Temporary Conservator is hereby modified to expire on the continued hearing date.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

****at 9:30 a.m.****

Andre Nave-Hernandez v. SRGA Resort, LP et al

25CV002138

[1] DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The Motion is GRANTED IN PART. Defendant SRGA Resort, LP (SRGA) is granted leave to withdraw its Answer on or after October 1, 2026. Plaintiff Andre Nave-Hernandez is directed to proceed with all haste to amend his Complaint as indicated and serve Notice of Entry of this Court's concurrent order regarding discovery.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of